

STATE OF NEW YORK

3342--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public officers law, in relation to lowering quorum requirements for meetings of community boards held by videoconferencing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of subdivision 2 of section 103-a of
2 the public officers law, as added by section 2 of part WW of chapter 56
3 of the laws of 2022, is amended to read as follows:

4 A public body may, in its discretion, use videoconferencing to conduct
5 its meetings pursuant to the requirements of this article provided that
6 a minimum number of members are present to fulfill the public body's
7 quorum requirement in the same physical location or locations where the
8 public can attend, except that in the case of an advisory body, the
9 advisory body may elect to require at minimum one quarter of the members
10 and the relevant presiding officer to be present in such physical
11 location or locations, and the following criteria are met:

12 § 2. Section 103-a of the public officers law is amended by adding a
13 new subdivision 6 to read as follows:

14 6. For the purposes of this section, an "advisory body" shall be
15 defined as an entity that is involved in an advisory capacity only;
16 including but not limited to engagement in policy development, program
17 planning, and program evaluation, and that may or may not vote to deter-
18 mine a final policy or programmatic outcome, including but not limited
19 to a community board in a city with a population of one million or more.

20 § 3. This act shall take effect immediately; provided, however, that
21 the amendments to section 103-a of the public officers law made by
22 sections one and two of this act shall not affect the repeal of such
23 section and shall be deemed repealed therewith.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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